

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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DANNY SIMMONS,

PLAINTIFF,

AMENDED COMPLAINT

-AGAINST-

15-CV-6383 (CBA)(SMG)

NEW YORK CITY, POLICE OFFICER CHRISTOPHER
IMPERIAL, POLICE OFFICER MARY MAPELLI and
POLICE OFFICER JOHN DOE, individually, and in their
capacity as members of the New York City Police
Department,

DEFENDANTS.

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PRELIMINARY STATEMENT

1. This is a civil action in which plaintiff Mr. Danny Simmons (“Mr. Simmons”) seeks relief for the violation of his rights secured by 42 USC 1983, the Fourth and Fourteenth Amendments to the United States Constitution.
2. The claims arise from an incident on or about August 12, 2015, in which officers of the New York City Police Department (“NYPD”), acting under color of state law, intentionally and willfully subjected Mr. Simmons to *inter alia* false arrest and excessive force.
3. Plaintiff seeks monetary damages (special, compensatory and punitive) against defendants and an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 USC 1331, 42 USC 1983, and the Fourth and Fourteenth Amendments to the United States Constitution.
5. Venue is laid within the United States District Court for the Eastern District of New York in that the events giving rise to the claim occurred within the boundaries of the Eastern District of New York.

PARTIES

6. Plaintiff, Mr. Simmons, is a 29-year-old citizen of the United States and at all times here relevant resided at 1288 Sutter Avenue, Brooklyn, NY 11208.
7. New York City is a municipal corporation organized under the laws of the State of New York.
8. Police Officer Christopher Imperial (“PO Imperial”), Police Officer Mary Mapelli (“PO Mapelli”) and Police Officer John Doe (“PO John Doe”) at all times here relevant were members of the NYPD, and are sued in their individual and professional capacities.
9. At all times mentioned, defendants were acting under color of state law, under color of the statutes, ordinances, regulations, policies, and customs and usages of the City of New York.

FACTUAL ALLEGATIONS

10. Mr. Simmons is 29-years old and is a self-employed cleaner.
11. On or about August 12, 2015, Mr. Simmons returned home from work at approximately 9:30 pm.

12. Mr. Simmons went to smoke a cigarette on the stoop, in the enclosed front yard of his home, with friends.
13. PO Imperial and PO Mapelli walked past on the sidewalk.
14. PO Imperial and PO Mapelli turned back and asked everyone on the stoop, in sum and substance, where the marijuana was.
15. Mr. Simmons told the officers that there was no marijuana and he had smoked a cigarette.
16. The officers asked for identification from everyone on the stoop.
17. Mr. Simmons told the officers that he was not required to show them identification.
18. Mr. Simmons went back into his home.
19. PO Imperial and PO Mapelli then attempted to enter Mr. Simmons' home.
20. Several other police officers then arrived on the scene.
21. PO John Doe entered Mr. Simmons' home and kicked down the door to Mr. Simmons' bedroom.
22. PO John Doe grabbed Mr. Simmons by the arms and handcuffed Mr. Simmons behind his back.
23. The handcuffs were extremely tight.
24. PO John Doe then squeezed the handcuffs, causing Mr. Simmons severe pain.
25. Mr. Simmons told PO John Doe that the handcuffs were too tight and requested that the handcuffs be loosened.
26. PO John Doe refused Mr. Simmons' request.
27. PO John Doe then pushed Mr. Simmons against the open hinges of the doorframe, causing injury to Mr. Simmons' shoulders.

28. PO John Doe then squeezed Mr. Simmons' handcuffs again and slammed Mr.

Simmons against a police car.

29. Mr. Simmons was taken to the 75th and held in a cell for several hours.

30. Mr. Simmons was given a Summons for Unlawful Possession of Marijuana.

31. Mr. Simmons returned home to find his bedroom had been ransacked, with his possessions damaged.

32. On or about October 14, 2015, Mr. Simmons attended court and all charges were dismissed.

33. Mr. Simmons continues to feel traumatized by the events of August 2015, and is wary and fearful when he sees police officers.

34. Mr. Simmons takes efforts to avoid police officers when in public.

35. Mr. Simmons suffered physical injuries as result of the incident, including cuts, scrapes and bruises to both shoulders and a sprained right hand.

36. Mr. Simmons suffered following the incident and feels fear, embarrassment, humiliation, emotional distress, frustration, anxiety, and loss of liberty.

FIRST CAUSE OF ACTION

(42 USC 1983 – False Arrest)

37. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.

38. Defendants have deprived plaintiff of his civil, constitutional and statutory rights under color of law and are liable to plaintiff under 42 USC 1983.

39. Defendants have deprived plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that plaintiff was falsely arrested by defendants.
40. Defendants confined plaintiff.
41. Plaintiff was aware of, and did not consent to, his confinement.
42. The confinement was not privileged.
43. Plaintiff has been damaged as a result of defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

SECOND CAUSE OF ACTION

(42 USC 1983 – Excessive Force)

44. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.
45. Defendants have deprived plaintiff of his civil, constitutional and statutory rights under color of law and are liable to plaintiff under 42 USC 1983.
46. Defendants have deprived plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that defendants used excessive and unreasonable force in effecting the arrest of plaintiff.
47. Plaintiff has been damaged as a result of defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

THIRD CAUSE OF ACTION

(42 USC 1983 –Denial of Right to a Fair Trial)

48. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.
49. Defendants have deprived plaintiff of his civil, constitutional and statutory rights under color of law and are liable to plaintiff under 42 USC 1983.
50. Defendants have deprived plaintiff of his right to a fair trial, pursuant to the Fifth and Sixth Amendments to the United States Constitution.
51. Defendants created false information likely to influence a jury's decision and then forwarded that information to prosecutors, resulting in plaintiff suffering a deprivation of liberty and a violation of his rights.
52. Plaintiff has been damaged as a result of defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

FOURTH CAUSE OF ACTION

(42 USC 1983 – Unreasonable and Unlawful Search and Entry)

53. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.
54. Defendants have deprived plaintiff of his civil, constitutional and statutory rights under color of law and are liable to plaintiff under 42 USC 1983.
55. Defendants have deprived plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution, in that Defendants entered and searched plaintiff's private home and

possessions without a valid warrant, without consent, without probable cause and without privilege.

56. Plaintiff has been damaged as a result of defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

JURY DEMAND

57. Plaintiff demands a trial by jury.

WHEREFORE, plaintiff respectfully requests that the court enter a Judgment against defendants together with costs and disbursements as follows:

In favor of plaintiff in an amount to be determined by a jury, but at least equal or exceeding the jurisdictional limit of this Court for each of plaintiff's causes of action;

Awarding plaintiff punitive damages in an amount to be determined by a jury;

Awarding plaintiff reasonable attorneys' fees, costs and disbursements of this action;

And such other and further relief as the Court deems just and proper.

Dated: New York, New York
March 14, 2016

By: /s/
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